

Court No. - 21

Case :- WRIT - C No. - 24836 of 2024

Petitioner :- Ram Sewak

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Harish Chandra

Counsel for Respondent :- C.S.C.,Manu Ghildyal

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. The petitioner has assailed the recovery citation dated 30.05.2023 issued by respondent no.5 for recovery of electricity dues from the petitioner.

2. We are of the opinion that the petitioner has efficacious remedy of filing objection under Clause 6.5 of the Electricity Supply Code, 2005.

3. Accordingly, the writ petition is **disposed of** with liberty to the petitioner to file objections within two weeks from today alongwith true attested copy of the instant order before respondent no.3 and in which event, the same shall be decided by him by a speaking order within next two weeks. For the period of four weeks, the impugned recovery will remain in abeyance and will, thereafter, abide by the decision that would be taken by respondent no.3 on the objection of the petitioner.

4. In case objection is not filed, as above, the instant order will be of no avail and it shall be open for the respondents to proceed further in the matter in accordance with law.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.7.2024

Ankit.